



**153rd GENERAL ASSEMBLY
FISCAL NOTE**

BILL:	HOUSE BILL NO. 107
SPONSOR:	Representative Yearick
DESCRIPTION:	AN ACT TO AMEND TITLE 18 OF THE DELAWARE CODE RELATING TO LINE-OF-DUTY DEATH BENEFITS.

Assumptions:

1. This Act is effective upon signature by the Governor.
2. This Act amends current provisions in Title 18 providing line-of-duty death benefits for persons currently serving as "covered persons" by extending these benefits to previously covered persons whose death is the proximate result of actions by a person seeking retaliation against the previously covered person for performing their duties of their former office or position.
3. For each death in the line of duty of a covered person, designated beneficiaries are eligible for the following:
 - a. An amount totaling \$375,000, payable in annual installments with the maximum amount payable in any one calendar year being \$50,000.
 - b. Tuition, for no more than four years for each dependent child of such covered person as long as such child is enrolled in a degree or certificate program at a college or university.
 - c. Health insurance for dependent children of covered persons, unless covered by the federal government, Tricare, or a similar program.
4. For purposes of this analysis, only the monetary payment is considered. Tuition and health insurance provisions would be dependent upon family specifics.
5. The Act does not provide a minimum length of service as a covered person to be eligible for the benefits contained therein, therefore it is assumed that anyone who ever served any length of time as a covered person would be eligible. The number of individuals who ever served any length of time as a covered person and the incidence rate of retaliatory actions are unknown.

Cost:

Fiscal Year 2026:	Indeterminable
Fiscal Year 2027:	Indeterminable
Fiscal Year 2028:	Indeterminable

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Office of the Controller General